

Terms and Conditions

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Introduction and Acceptance

Agreement Overview These Terms and Conditions govern your use of Check It Out, an EU-based influencer marketing software-as-a-service platform operated by CHECK IT OUT SPÓŁKA Z OGRANICZONĄ ODPOWIEDZIALNOŚCIĄ. These Terms form a legally binding agreement between you and the Company. By accessing or using the Platform, you acknowledge that you have read, understood, and agree to be bound by these Terms. If you do not agree, you must not use the Platform.

User Eligibility and Age Verification These Terms apply to all users of the Platform, including Brands (companies or marketers who create influencer campaigns) and Influencers (content creators participating in campaigns).

18+ Only Platform Check It Out is an adult-only platform. Users must be adults – you represent and warrant that you are at least 18 years of age and legally capable of entering into binding contracts. We do not knowingly allow access to individuals under 18.

Age Verification Process During registration, you must confirm your age and provide verification if requested. Any account found to belong to a minor will be immediately terminated and all associated data deleted within 30 days. As this is an adults-only platform, we do not have procedures for parental consent.

Related Policies Your use of the Platform is also subject to our Privacy Policy, Cookie Policy, and Data Retention Policy, which are incorporated herein by reference. These policies provide information on how we collect, use, and store your data in compliance with the EU General Data Protection Regulation (GDPR) and other applicable data protection laws.

Enterprise and White-Label Exclusions If you are using Check It Out under a separate enterprise, custom, or white-label agreement with us, or if you have negotiated a separate Master Services Agreement, that separate agreement will govern your use of the Platform instead of these Terms. These Terms do not apply to the extent they are inconsistent with any individually negotiated contract you have with the Company.

Policy Updates The Company may modify or update these Terms from time to time. We will provide notice of material changes via the Platform or email and update the "Last Updated" date above when changes are made. Continued use of the Platform after updated Terms are posted constitutes your acceptance of the changes. If you do not agree to the revised Terms, you must stop using the Platform.

Account Registration and Security

Account Creation Requirements To access most Platform features, you must register an account. You agree to provide truthful, accurate, and complete information during registration and to update your information as needed. Each user should register only one account, and you may not transfer your account to others or allow others to use it on your behalf without our consent.

Account Security You are responsible for maintaining the confidentiality and security of your login credentials. You must not share your password or API keys with any third party, and you agree to notify us immediately if you suspect any unauthorized access to your account.

Enhanced Security Notice

The Platform employs automated security measures including session binding, geographic anomaly detection, and bot protection. These systems may automatically terminate sessions or block access attempts deemed high-risk. Users employing VPN services, proxy connections, or frequently changing locations should be aware that legitimate usage may occasionally trigger security protections requiring re-authentication.

Security Decision Appeals

If you believe an automated security action was taken in error, you may request human review by contacting checkitout.inbox@gmail.com with subject "Security Review - [Issue]". We will review your case within 48 hours for access-blocking issues.

The Company will not be liable for any loss or damage arising from your failure to safeguard your account information or from legitimate security actions taken to protect your account and the Platform.

Identity Verification By registering, you confirm that you meet the eligibility criteria and, if you are registering on behalf of a company, that you have authority to bind that entity to these Terms. We reserve the right to verify your identity and any information you provide, including age verification to ensure compliance with our adult-only policy.

Account Suspension and Termination We may suspend, restrict, or terminate your account at our discretion if we determine that you have violated these Terms or any applicable law, or if your use of the Platform creates risk for us or other users. We will attempt to provide notice of any suspension or termination, but we may disable your account immediately and without notice if necessary.

User-Initiated Termination You may terminate your own account at any time by using the account settings or contacting us. Upon termination, you must cease all use of the Platform. Sections of these Terms which by their nature should survive termination will continue to apply.

Account Responsibilities You are responsible for all activities that occur under your account. You agree not to use the account of another user or attempt to impersonate any person or entity. All registration and profile information you provide must be your own and not that of any third party.

Automated Decision-Making and User Rights

Transparency in Automated Processing:

The Platform uses automated systems for security and operational purposes. Under data protection laws, you have specific rights regarding automated decision-making:

Types of Automated Decisions

- **Session Security:** Automatic session termination for impossible travel patterns
- **Access Control:** Blocking or flagging high-risk login attempts
- **Bot Prevention:** Automated challenges or restrictions for suspected automated access
- **Fraud Prevention:** Risk scoring and automated responses to suspicious activities

Your Rights

- **Right to Explanation:** Request information about automated decisions affecting your account
- **Right to Human Review:** Request manual review of any automated security action
- **Right to Contest:** Challenge automated decisions you believe are incorrect
- **Right to Object:** Object to automated processing (subject to security override for compelling interests)

Exercise Rights

Contact checkitout.inbox@gmail.com with subject "Automated Decision Review - [Specific Issue]"

Response Timeline

- Access-blocking issues: 48 hours maximum response
- General automated decision reviews: 15 days per GDPR requirements
- Appeals: 30 days for complex cases involving security assessments

Platform Services and Usage Guidelines

Platform Overview Check It Out is an online platform that facilitates the creation and execution of influencer marketing campaigns by connecting Brands with Influencers. Brands can use the Platform to post campaign opportunities, provide campaign briefs, and collaborate with Influencers. Influencers can use the

Platform to discover campaign opportunities, submit applications or content to Brands, and receive payment for approved collaborations.

Intermediary Role The Platform acts as an intermediary to enable Brands and Influencers to find and work with each other. Check It Out is not a party to the independent agreements or arrangements that may be formed between a Brand and an Influencer for a specific campaign. Any campaign-specific agreement is between the Brand and the Influencer, even if the Platform provides a template or facilitates the acceptance of such terms.

Acceptable Use Policy All users must use the Platform in a lawful and respectful manner. You agree that you will not:

- Violate any applicable laws or regulations in the course of using the Platform or engaging in campaigns
- Post or transmit any content that is unlawful, defamatory, harassing, hateful, or that infringes any third-party rights
- Misuse the Platform by introducing viruses, malware, or any other harmful code
- Attempt to scrape, data-mine, or otherwise extract data from the Platform without our express permission
- Use the Platform to send unauthorized advertising or communications to users or third parties
- Attempt to circumvent any security measures or access controls on the Platform

Enhanced Security Measures

Automated Security Protections

The Platform implements automated security measures to protect user accounts and maintain platform integrity. These measures include:

- **Session Security:** Correlation of user sessions with IP addresses and geographic locations to detect and prevent session hijacking
- **Impossible Travel Detection:** Automatic session termination if suspicious geographic changes are detected within impossible timeframes
- **Bot Protection:** Automated risk assessment during login, registration, and password changes to prevent automated attacks
- **Fraud Prevention:** Real-time security scoring and blocking of high-risk authentication attempts

Impact on Platform Usage

- **VPN/Proxy Users:** Rapid IP address changes may trigger security measures, potentially requiring re-authentication or causing temporary access restrictions
- **Frequent Travelers:** Legitimate travel may occasionally trigger impossible travel detection; contact support for assistance
- **Security Alerts:** Users may receive automated notifications about security actions taken on their accounts
- **Additional Verification:** High-risk actions may require additional verification steps, including email-based two-factor authentication

User Cooperation

By using the Platform, you acknowledge and accept these automated security measures as necessary for account protection and platform integrity. While you retain rights under data protection laws to object to automated processing, essential security measures may continue based on compelling legitimate interests.

Content Guidelines for Influencers If you are an Influencer using the Platform, you agree to adhere to industry best practices and legal requirements for sponsored content. This includes clearly disclosing your material connection to the Brand in any public content using hashtags like #ad, #sponsored, or other clear indicators of sponsorship in compliance with applicable advertising regulations. You should avoid making any false or misleading claims about the Brand's products or services.

Guidelines for Brands If you are a Brand, you must ensure that any campaign you create and any materials or instructions you provide to Influencers are lawful, do not infringe third-party rights, and comply with advertising and consumer protection laws. You should not instruct an Influencer to violate any platform's terms of use or any law.

Platform Updates

The Company may modify, update, or remove features of the Platform at any time as needed to improve our services or comply with legal requirements. We will try to give notice of major changes via the Platform or email. The Platform may occasionally be unavailable for maintenance or due to unexpected outages.

Campaign Process and Responsibilities

Campaign Initiation Brands can initiate marketing campaigns on the Platform by providing a campaign brief that includes details such as campaign objectives, content requirements, deadlines for content delivery, performance metrics expectations, and the fee or compensation offered to Influencers. Brands must ensure that any information in the campaign brief is clear, accurate, and complete.

Influencer Selection Process Influencers may browse available campaign opportunities and apply or accept invitations through the Platform. Brands are responsible for reviewing Influencer profiles, content history, and applications, then selecting the Influencer(s) they wish to work with. Once a Brand approves an Influencer for a campaign assignment, both parties must confirm a Campaign Agreement through the Platform.

Influencer Obligations For each campaign accepted, the Influencer agrees to:

Content Creation

Create original, high-quality content as specified by the Brand's campaign brief that meets the deliverable requirements. The content must be authored by the Influencer and must not include any material to which

the Influencer does not have rights or permission.

Legal Compliance

Follow all instructions and guidelines provided by the Brand and comply with all applicable laws and regulations. This includes advertising disclosure laws, intellectual property laws, and platform terms of use. The Influencer must include any required disclosures indicating that the content is sponsored.

Timely Delivery

Deliver the content by the deadlines agreed in the campaign brief. Time is of the essence in campaign engagements. Unexcused failure to deliver content on time constitutes a breach of the campaign obligations.

Approval Process

If the campaign brief requires content approval before public posting, the Influencer must await approval and make good-faith efforts to accommodate reasonable edit requests from the Brand.

Performance Analytics

If agreed in the campaign, provide the Brand and/or Platform with access to relevant performance data of the sponsored content within a reasonable time after posting.

Brand Obligations For each campaign, the Brand agrees to:

Provide Necessary Materials

Supply the Influencer with all information, materials, and support reasonably required for the campaign. The Brand warrants that it owns or has obtained rights to any materials it provides to the Influencer.

Review and Feedback

Diligently review any submitted content from the Influencer in a timely manner and not unreasonably delay or withhold approval if the content meets the agreed requirements.

Payment for Services

Pay the agreed compensation to the Influencer in full and on time via the Platform's payment system. Payment cannot be withheld unjustifiably once deliverables are completed.

Legal Compliance

Use content created by Influencers only in accordance with the rights granted and comply with all laws relevant to the campaign, including advertising regulations and data protection laws.

Performance Expectations Each Influencer will put forth commercially reasonable efforts to create and distribute engaging content, but the Brand acknowledges that audience response is outside the Influencer's or Platform's control. The Company does not guarantee any specific outcomes or ROI from any campaign. Influencers act as independent contractors and have creative discretion within the bounds of the campaign brief.

Dispute Resolution Between Users

While Check It Out may facilitate communication and provide assistance, any disputes between a Brand and an Influencer regarding a campaign are primarily matters between those parties. The Company is not liable for obligations of Brands or Influencers to each other, but we may help mediate such disputes at our discretion.

Intellectual Property Rights and Content Licensing Framework

Platform Intellectual Property The Platform is protected by intellectual property laws. Check It Out and its licensors retain all rights, title, and interest in the Platform and its trademarks, logos, and brand identity. We grant users a limited, non-exclusive, non-transferable license to use the Platform for its intended purposes.

User Content Definition User Content means any content that users upload, post, or transmit via the Platform. This includes campaign materials, profiles, text, images, videos, comments, messages, deliverables created by Influencers, and any other material contributed by users.

Brand Materials Brands may provide certain materials to Influencers through the Platform for use in campaigns, such as logos, product images, videos, or copy. The Brand retains all intellectual property rights in the Brand Materials and grants the Influencer a limited license to use them solely as needed to create and publish campaign content during the campaign period.

Influencer Content Licensing Framework For campaign content created by Influencers, we implement a tiered licensing system that respects creator rights while meeting brand needs:

Standard Campaign License Upon campaign completion and payment, the Influencer grants the Brand a non-exclusive license to use the Campaign Content with the following standard terms:

- **Duration:** 12 months from content delivery
- **Usage:** Social media organic posting, website display, email marketing
- **Territory:** Worldwide
- **Modifications:** Minor edits with creator approval

Extended Licensing Options Brands and Influencers may negotiate extended rights with additional compensation as mutually agreed, including but not limited to:

- Paid advertising and media amplification rights
- Exclusive usage rights within specific categories or timeframes
- Extended duration beyond standard 12-month period
- Commercial usage in traditional advertising, TV, or print media

Creator Retention Rights Influencers retain:

- Right to use content in personal portfolio indefinitely
- Right to object to usage that harms their reputation
- Copyright ownership (licensing only, no ownership transfer)
- Right to negotiate custom licensing terms

Check It Out Platform Marketing Rights By using the Platform, all users grant Check It Out automatic, non-exclusive, worldwide, royalty-free rights to use the following for marketing, advertising, and promotional purposes:

- **Brand Marketing Rights:** Brand name, logo, campaign performance metrics, and general campaign details for case studies and client showcases
- **Influencer Marketing Rights:** Influencer name, profile information, and campaign content for creator showcases and platform promotional materials
- **Content Usage:** Campaign content may be used immediately upon creation in Check It Out marketing materials, sales presentations, website, social media, and conference materials

- **Case Study Development:** Detailed case studies featuring successful campaigns with performance data, methodologies, and outcomes using real Brand and Influencer names
- **Aggregated Analytics:** Platform-wide performance insights and industry trend reporting

User Opt-Out Rights

Users may request exclusion from future marketing materials by emailing checkitout.inbox@gmail.com with subject "Marketing Opt-Out." Existing published materials remain unaffected.

No Ownership Transfer Campaign Content ownership remains with the creator. Brands receive usage licenses only. This protects creator rights while providing brands commercial flexibility.

Non-Campaign User Content For any User Content you upload outside of a specific Brand campaign, you retain ownership rights. By making such content available on the Platform, you grant the Company a non-exclusive, worldwide, royalty-free license to use, host, store, reproduce, modify, display, and distribute such content for the purposes of operating and providing our services.

Feedback If you submit suggestions, ideas, or feedback to us about improving the Platform, you agree that such Feedback is given voluntarily. We are free to use, disclose, reproduce, license, or otherwise distribute and exploit the Feedback as we see fit, without any obligation to you.

Third-Party IP Protection All users agree not to upload or use any content that infringes the intellectual property rights of any third party. If you believe content on the Platform infringes your rights, please notify us and we will respond in accordance with applicable law.

Payment Terms

Multi-Currency Support and Payment Processing All financial transactions on the Platform are facilitated exclusively through Stripe, our third-party payment processor. By using our Platform to make or receive payments, you also agree to be bound by Stripe's Services Agreement and other relevant Stripe terms. We do not process, store, or transmit your credit card or bank details on our servers.

All transactions are processed in the local currency of the user's billing address. Supported currencies include EUR, USD, GBP, PLN, and other major currencies as determined by Stripe's availability in your region.

Brand Payment Obligations Brands must fund their campaign commitments through the Platform as specified. All fees are listed and charged in the applicable local currency unless otherwise stated. You are responsible for providing valid payment information and keeping it up to date.

Stripe Fee Allocation Payment processing fees charged by Stripe are included in our platform fees and transparently disclosed at checkout. Users will see the total amount charged, inclusive of all processing fees, before confirming any transaction. Platform service fees or commissions will be disclosed upfront during campaign creation or acceptance.

Influencer Payouts Influencers will be paid the agreed campaign fee via the Platform's Stripe payout system once campaign deliverables are completed and approved by the Brand. Influencers must have a valid Stripe account or provide required payout details to receive funds.

VAT Treatment Check It Out is not currently registered for VAT. Prices displayed are exclusive of any applicable local taxes (VAT, GST, etc.) that may be added at checkout based on your billing location. You are responsible for any applicable taxes in your jurisdiction.

Tax Reporting and Responsibilities All users are responsible for declaring and paying taxes on their earnings or business expenses in accordance with their local tax laws. Brands may be charged applicable local taxes on fees if required. Influencers are independent contractors and are responsible for declaring and paying income tax, VAT, or other taxes arising from their earnings. Check It Out will provide transaction records to assist with tax reporting but does not provide tax advice. We retain financial records for 5 years in accordance with Polish law.

No Refunds Policy

All payments made through the Platform are generally non-refundable. The Company has a strict no- refund policy on transactions, except in cases where a demonstrable technical error of the Platform caused an incorrect charge or failure in the delivery of services. No refunds will be given for disputes arising from Brand/Influencer dissatisfaction with each other's performance.

Chargebacks and Reversals Brands agree not to initiate chargebacks or payment reversals without first attempting to resolve the matter through the Platform's dispute resolution process. If a Brand's payment is revoked via chargeback after an Influencer has delivered content, the Brand remains liable to pay that amount.

Subscription or Platform Fees If you subscribe to a paid plan or incur usage-based fees, you agree to pay the fees specified for that plan or service. Subscription fees will be charged in advance on a periodic basis and will auto-renew unless you cancel prior to the next billing date. We will notify you of any changes in subscription fees with at least 30 days' notice.

Confidentiality and Data Protection

Confidential Information You agree to keep confidential any information that is identified as confidential or that by its nature is confidential, including marketing plans, product prototypes, campaign strategies, budgets, and personal contact information. This duty of confidentiality does not apply to information that is or becomes public through no breach of your own.

GDPR Compliance Each party agrees to comply with applicable data protection laws, including the EU GDPR, with respect to any personal data processed under this Agreement.

Company's Role

The Company acts as a data controller with respect to personal data of users that it collects as described in our Privacy Policy. For facilitating campaigns, the Company may process certain personal data on behalf of Brands in a limited, service-provider capacity.

User Responsibilities

Brands and Influencers may each come into possession of personal data through the Platform. Each user agrees that they will:

- Use any personal data obtained through the Platform solely for intended campaign purposes
- Implement appropriate security measures to protect personal data
- Respect privacy choices and not retain personal data longer than necessary
- Comply with individuals' rights under GDPR if applicable

International Data Transfers

Users acknowledge that using our Services involves processing personal data in multiple jurisdictions, including outside the EU. While we employ substantial safeguards including the EU-US Data Privacy Framework and Standard Contractual Clauses, users should be aware that:

- EU-US data transfer frameworks have faced legal challenges
- US surveillance laws may permit government access to transferred data
- Alternative transfer mechanisms may need to be implemented at short notice

We maintain a transparent approach to these challenges and will notify users promptly of any significant changes to our transfer mechanisms. By using the Platform, you acknowledge these international transfer realities while we continue working to maximize your data protection across borders.

Data Processing Agreements The Company generally will not sign separate Data Processing Agreements with Brands or Influencers, since we are not a processor of user-controlled personal data in the traditional sense. However, if a user believes a GDPR-compliant data processing agreement is required, they should contact us to discuss additional arrangements.

Data Retention Personal data will be retained by the Company as outlined in our Data Retention Policy. Generally, we keep user account data for as long as the account is active, and for a period after to comply with legal obligations or resolve disputes, following our Master Data Retention Schedule.

Campaign Confidentiality

Prior to a campaign's public launch, both Brand and Influencer should treat the campaign details and any shared materials as confidential unless the Brand expressly allows pre-release promotion. Influencers may be required to sign separate confidentiality agreements for certain campaigns.

Representations and Warranties

General User Warranties You represent and warrant that:

- You have the legal right and authority to enter into these Terms
- All information you provide will be truthful and accurate
- Your use of the Platform will comply with all applicable laws and regulations
- Neither the execution of this agreement nor your obligations will conflict with any other agreement
- You are at least 18 years of age and legally capable of entering binding contracts
- You will cooperate with reasonable security measures implemented by the Platform
- You will use legitimate access methods and not attempt to circumvent security protections
- You will promptly notify us of any security concerns or unusual account activity
- If using VPN, proxy, or other network technologies, you acknowledge potential impact on automated security systems and will not attempt to exploit such technologies to compromise platform security

Influencer-Specific Warranties If you are an Influencer, you further warrant that:

- You will create all Campaign Content yourself and the content will be original
- You have all necessary rights to grant the intellectual property licenses provided under these Terms
- Your content will not infringe any third-party rights and will not defame any person or entity
- You will not engage in activities to artificially inflate reach or engagement
- You understand you are an independent contractor and will comply with applicable self-employment laws

Brand-Specific Warranties If you are a Brand, you further warrant that:

- You have the rights to any materials you provide for campaigns
- Any claims about your products or services are truthful, substantiated, and compliant with laws
- You will not use the Platform for campaigns involving illegal content or activity
- You will pay Influencers and Platform fees as agreed and have sufficient funds to do so

Platform Circumvention All users warrant that they will not intentionally circumvent the Platform in bad faith. Brands should not use the Platform to identify Influencers and then complete transactions off-platform to avoid fees, and Influencers should not solicit Brands to pay them off-platform for campaigns discovered through Check It Out.

Disclaimer of Warranties Except as expressly provided in these Terms, the Platform and all services are provided "AS IS" and "AS AVAILABLE", without warranty of any kind. To the fullest extent permitted by law, the Company disclaims all warranties, express or implied, including warranties of merchantability, fitness for a particular purpose, and non-infringement.

Third-Party Services The Platform may integrate or link with third-party services such as social media networks, Stripe for payments, or analytics tools. We do not warrant or endorse any third-party service. Your use of third-party services may be subject to their terms and privacy policies.

Indemnification

Users' Indemnification of Company Each user agrees to indemnify, defend, and hold harmless Check It Out and its affiliates from and against any third-party claims, demands, lawsuits, damages, losses, and expenses arising out of or related to:

- Your breach of these Terms or any additional agreement
- Your use of the Platform in violation of any law or regulation
- Any User Content you provide or campaign content you create
- Product liability or false advertising claims relating to your products/services (if you are a Brand)
- Claims related to your conduct in creating or posting content (if you are an Influencer)
- Violation of intellectual property rights in your use of the Platform

Company's Indemnification of Users The Company agrees to indemnify and hold harmless each user from any third-party claims, damages, losses, and expenses to the extent arising from:

- The Company's breach of its obligations under these Terms
- Claims that the Platform services infringe the intellectual property rights of a third party
- The Company's gross negligence or willful misconduct

Indemnification Procedures Any party seeking indemnification shall give prompt written notice of the claim with enough details to describe the allegations, permit the indemnifying party to assume control of the defense, and provide reasonable assistance at the indemnifying party's expense.

Limitation of Liability

Excluded Damages To the fullest extent permitted by law, neither Check It Out nor you will be liable for any indirect, incidental, special, consequential, punitive, or exemplary damages, including damages for lost profits, loss of opportunity, business interruption, loss of data, or other intangible losses.

Liability Cap Each party's total cumulative liability for all claims shall not exceed the total amount of fees paid or payable by you to the Company in the 12 months immediately preceding the event giving rise to the liability. If you have paid no fees, the Company's total liability shall not exceed EUR 100.

Legal Exceptions Nothing in these Terms excludes or limits any liability which cannot be excluded by law, including liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or breach of any term regarding title implied by law. The limitations do not apply to indemnification obligations, payment of due fees, or breaches of intellectual property obligations.

Security Measure Limitations

The Company's liability limitations include damages or inconvenience arising from:

- Legitimate automated security actions that temporarily restrict account access
- False positives in fraud detection or impossible travel systems
- Compatibility issues between user network configurations (VPN/proxy) and security systems
- Delayed access due to additional verification requirements triggered by security systems

Security Effectiveness Disclaimer

While we implement industry-standard security measures, no security system is perfect. We do not guarantee that automated security measures will prevent all unauthorized access or fraudulent activity. Users remain responsible for maintaining secure account practices and promptly reporting security concerns.

EU Consumer Rights If you are using the Platform as a consumer, you may have certain rights under EU consumer protection laws that cannot be waived by contract. Nothing in these Terms affects those statutory rights.

User Dispute Release Because we are an intermediary, if you have a dispute with other users or third parties as a result of your use of the Platform, you release Check It Out from any claims arising out of or connected with such disputes.

Governing Law and Dispute Resolution

Governing Law This Agreement shall be governed by and construed in accordance with the laws of Poland. This choice of law includes applicable European Union law as implemented under Polish law, but does not affect any mandatory rights you may have under the law of your country of residence.

Jurisdiction The courts of Poland shall have exclusive jurisdiction to adjudicate any dispute arising out of this Agreement, except that if you act as a consumer and mandatory laws give you the right to bring a claim in your home country's courts, you may do so.

Amicable Resolution Before resorting to formal legal action, the parties agree to attempt in good faith to resolve any disputes informally. If any controversy arises, the concerned party should notify the other party in writing describing the dispute and desired resolution. Representatives of both parties shall then communicate within 30 days to try to resolve the issue.

Optional Mediation If both parties consent, they may attempt to resolve the dispute through neutral mediation before litigation. The costs of mediation would be shared equally unless otherwise agreed.

No Class Actions To the extent permitted by applicable law, each party agrees to resolve disputes only on an individual basis, and not as a plaintiff or class member in any class, collective, or representative proceeding.

European Online Dispute Resolution If you are an EU consumer, the European Commission provides an Online Dispute Resolution platform at <https://ec.europa.eu/consumers/odr>. However, since our service is primarily B2B, we prefer direct dispute resolution as outlined above.

Injunctive Relief Either party may seek interim injunctive relief in any competent court to prevent immediate and irreparable harm, such as misuse of intellectual property or violation of confidentiality obligations.

Content Reporting

Users can report inappropriate or potentially illegal content, security concerns, or issues with automated security systems at: **checkitout.inbox@gmail.com** with subject line:

- Content reports: "Content Report - [Issue]"
- Security issues: "Security Report - [Issue]"
- Automated decision appeals: "Security Review - [Issue]"

Response Times

- Security-related reports: 48 hours maximum
- Content reports: 7 days standard review
- Appeals: 30 days for complex security assessments

For urgent matters involving immediate harm or safety concerns, please also contact local authorities.

Miscellaneous Provisions

Entire Agreement These Terms, along with any campaign-specific agreements accepted on the Platform and any additional policies referenced herein (Privacy Policy, Cookie Policy, Data Retention Policy), constitute the entire agreement between you and Check It Out regarding the Platform's use and supersede all prior communications or agreements.

Severability If any provision of these Terms is held to be invalid, illegal, or unenforceable, that provision shall be enforced to the maximum extent permissible, and the remaining provisions shall remain in full force and effect.

No Waiver No failure or delay by either party in exercising any right under these Terms shall operate as a waiver of any such right. Any waiver to be effective must be in writing and signed by the party granting it.

Assignment You may not assign or transfer these Terms without the Company's prior written consent. The Company may assign or transfer these Terms to any third party in connection with a merger, acquisition, or sale of assets, provided we notify you of any assignment that results in a new provider of the Platform.

Independent Contractors

The relationship between a Brand, the Company, and an Influencer is that of independent contracting parties. Nothing in these Terms shall be construed to constitute any party as an employer, employee, agent, joint venture, or partner of the other.

Third-Party Beneficiaries There are no third-party beneficiaries to this Agreement, except that our affiliates may enforce and benefit from the liability limitations and indemnification protections in these Terms.

Legal Notices and Contact Information Legal notices to Check It Out should be sent via registered mail to:

Check It Out – Legal Department Białowieska 89 / 24 54-234 Wrocław, Polska (Poland)

Email

checkitout.inbox@gmail.com **Subject Lines:**

- Legal matters: "Legal - [Your Issue]"
- Contract disputes: "Legal - Contract Dispute"
- IP concerns: "Legal - Intellectual Property"
- General terms questions: "Legal - Terms & Conditions"
- Content reports: "Content Report - [Issue]"
- Appeals: "Appeal - [Decision ID]"

Notices to you will be sent to the contact information associated with your account. It is your responsibility to keep your contact information current.

Language These Terms are provided in the English language. If we provide a translation, the English version shall prevail to the extent of any inconsistency, unless prohibited by law.

Force Majeure Neither party will be liable for any delay or failure to perform obligations under these Terms if such delay is due to an event beyond its reasonable control, such as acts of God, war, terrorism, pandemic, strikes, or internet failures.

Customer Support If you have questions about these Terms or the Platform, or need support for non-legal matters, please contact our support team at checkitout.inbox@gmail.com with subject "Support - [Your Issue]" or through the help center on the Platform.

By using the Check It Out Platform, you acknowledge that you have read and agree to these Terms and Conditions.

This Terms and Conditions document is part of our comprehensive legal framework including our Privacy Policy, Cookie Policy, and Data Retention Policy.